

Descriptive Question Bank (6 Marks Each)

1. Discuss how the principles of Federalism and Separation of Powers operate in India and how they help maintain constitutional stability.

The Indian Constitution maintains stability through a delicate balance of power distribution, ensuring no single entity becomes too powerful.

- **Federalism (Division of Power):**

- India is described as a "Union of States," meaning it is not a single unitary government but a federal system where power is shared.
- There is a clear division of powers where the **Central Government** handles national subjects (like defence) and **State Governments** handle regional subjects (like police and health).
- This structure balances the need for a strong central authority with the autonomy required for diverse regions, providing continuity and stability in governance.

- **Separation of Powers:**

- The Constitution mandates a system of "**checks and balances**" among the three organs of the State: the Legislature, the Executive, and the Judiciary.
- Each organ must respect the others and not encroach into each other's domain.
- This separation ensures the **Rule of Law**, meaning that no individual or government body is above the law, which prevents arbitrary rule and maintains democratic stability.

2. What is meant by Judicial Review? Discuss its importance in preserving constitutional values and democratic functioning in India.

- **Meaning of Judicial Review:**

- Judicial Review is the power of the Judiciary, specifically the Supreme Court, to interpret the law and review the actions of the Legislature and Executive.
- The Supreme Court acts as the "**Guardian of the Constitution**", ensuring that no law passed by the Parliament violates the constitutional provisions.

- **Importance:**

- **Protection of Rights:** It protects citizens' Fundamental Rights from arbitrary and discriminatory actions by the State.
- **Living Document:** Through ingenious interpretations, the Supreme Court has "breathed life" into the Constitution. For example, the Court has interpreted the "Right to Life" to include the **Right to Privacy** (2017) and the **Right to Livelihood**, adapting the Constitution to modern needs.
- **Checking Power:** It ensures that the government functions within the limits of the Constitution, preserving democratic values.

3. “While Fundamental Rights are legally enforceable, Directive Principles are essential guidelines for governance.” Discuss this in the Indian context.

The Constitution serves two distinct purposes through Part III and Part IV: protecting the individual and guiding the state.

- **Fundamental Rights (Part III - Enforceable):**
 - These rights (e.g., Equality, Freedom of Speech) are **justiciable**, meaning they are legally enforceable by courts.
 - They act as a shield for citizens against the State. If the State violates a citizen's rights, the citizen can approach the court for a remedy (Article 32).
 - They guarantee political democracy by ensuring civil liberties.
- **Directive Principles of State Policy (Part IV - Guidelines):**
 - These are **non-justiciable**, meaning a citizen cannot go to court to force the government to implement them.
 - However, they are **fundamental in governance**. They act as instructions or goals for the government to achieve social and economic democracy.
 - Examples include ensuring **equal pay for equal work**, providing **free legal aid**, and protecting the **environment**.

4. Explain how constitutional values and ethical principles have developed and evolved through the making and functioning of the Indian Constitution.

The Indian Constitution is not a static book but a "living document" that has evolved significantly over 75 years.

- **Foundations:**
 - The Constitution was built on values upheld by Indian society for centuries and refined during the long freedom struggle.

- It was designed as an instrument of "**social revolution**" to break away from historical hierarchies like caste and colonial rule.
- **Evolution through Interpretation:**
 - The Constitution has grown through **Amendments** (Article 368) and **Supreme Court interpretations**.
 - Scholars describe this as "**transformative constitutionalism**," where the focus has shifted from a neutral state to one that actively intervenes to achieve social justice.
 - The Supreme Court has expanded the scope of rights, such as reading the **Right to Privacy** into the Fundamental Rights in 2017, proving the Constitution adapts to the spirit of the age.

5. Discuss how the Constitution of India envisions social justice and equality for all citizens.

- **Social Justice:**
 - The Constitution is driven by the ideal of "**transformative constitutionalism**," which necessitates State intervention to achieve social justice.
 - It aims to liberate the Indian masses from social and natural constraints, creating a society free from discrimination based on caste, creed, gender, or religion.
- **Equality:**
 - **Substantive Equality:** The Constitution goes beyond "formal equality" (treating everyone the same) to "substantive equality." This means it allows **special provisions** (reservations) for marginalized groups (women, SCs, STs) to level the playing field.
 - **Economic Justice:** It envisions that there should be no discrimination based on economic status. Wealth should be divided based on work done, ensuring **equal pay for equal work** and equal opportunities to earn a living.

6. Explain the idea of human rights in India and describe the constitutional provisions that ensure their protection.

- **Idea of Human Rights:**

- Human rights are rights inherent to all human beings regardless of nationality, sex, religion, or language. They are **inalienable** (cannot be taken away), **indivisible**, and **interdependent**.
- **Constitutional Provisions:** The Indian Constitution integrates these universal rights into Fundamental Rights:
 - **Right to Equality (Articles 14-18):** Ensures equality before the law and prohibits discrimination.
 - **Right to Freedom (Articles 19-22):** Guarantees freedom of speech, assembly, and protection of life and personal liberty.
 - **Right Against Exploitation (Articles 23-24):** Specifically prohibits forced labour and child labour.
 - **Right to Constitutional Remedies (Article 32):** Allows citizens to move the court to enforce these rights, making them a reality rather than just a promise.

7. How does the Indian Constitution encourage cultural diversity and promote inclusiveness? Explain with suitable constitutional references.

The Constitution includes specific provisions to protect the rich diversity of India and ensure minorities feel secure.

- **Cultural and Educational Rights (Articles 29-30):**
 - **Article 29:** Grants any section of citizens with a distinct **language, script, or culture** the right to conserve it. This protects cultural identity from being overwhelmed by the majority.
 - **Article 30:** Grants religious and linguistic **minorities** the right to establish and administer their own educational institutions. The State cannot discriminate against them when granting aid.
- **Freedom of Religion (Articles 25-28):**
 - **Article 25** ensures all persons are equally entitled to freedom of conscience and the right to practice their religion freely. This promotes a secular environment where diverse faiths coexist.
- **Inclusiveness:** The Preamble's declaration of "**Fraternity**" and "**Secularism**" ensures that despite diverse backgrounds, all citizens share a common dignity and national unity.

8. Discuss how constitutional morality supports human dignity, equality, and inclusive governance in India.

- **Constitutional Morality:**
 - This concept involves cultivating a **democratic citizen** who respects the rule of law. It limits the arbitrary power of the government while empowering the individual.
- **Human Dignity:**
 - The Supreme Court has interpreted **Article 21 (Right to Life)** to mean more than just "animal existence"; it guarantees a **life with human dignity**.
 - Dignity is violated by acts like torture, humiliation, or forced labour. The Preamble assures the "dignity of the individual" as a core value.
- **Inclusive Governance:**
 - The phrase "**We the People**" creates a new, inclusive identity that transcends caste and religious barriers, ensuring that the government belongs to everyone equally.

9. Describe the Fundamental Rights, Directive Principles of State Policy, and Fundamental Duties and analyze how they shape governance and social life in India.

- **Fundamental Rights (Part III):**
 - These form the "**bedrock**" of an inclusive society. They limit the power of the State and protect individual liberties like speech (Art 19) and equality (Art 14).
- **Directive Principles of State Policy (Part IV):**
 - These are the "**goals**" for the government. They shape governance by directing policy towards social welfare, such as ensuring public health, education for all, and protecting the environment.
- **Fundamental Duties (Part IVA / Article 51A):**
 - These shape social life by making citizens **responsible participants** in democracy.
 - Duties include respecting the National Flag, promoting harmony (brotherhood), protecting the environment, and developing a scientific temper.

10. Explain how the Preamble expresses the philosophy, ideals, and vision on which the Indian Constitution is based.

The Preamble is the "soul" of the Constitution and summarizes its entire philosophy.

- **Nature of the State:** It declares India as:
 - **Sovereign:** Independent authority with no external control.
 - **Socialist:** Committed to reducing inequality and ensuring justice.
 - **Secular:** Treating all religions equally.
 - **Democratic:** Government elected by the people.
 - **Republic:** The Head of State is elected, not hereditary.
- **Objectives for Citizens:** It secures:
 - **Justice:** Social, economic, and political.
 - **Liberty:** Of thought and expression.
 - **Equality:** Of status and opportunity.
 - **Fraternity:** Assuring the dignity of the individual and unity of the nation.

11. Explain how constitutional values in India help in promoting unity while respecting diversity and inclusiveness.

- **Fraternity:**
 - The Constitution promotes **Fraternity** to create a bond among citizens, encouraging the belief that everyone is a "child of the same soil" regardless of caste or gender.
 - This value assures the dignity of the individual, which is essential for the unity and integrity of the nation.
- **Secularism:**
 - By declaring India as **Secular**, the Constitution ensures the state remains neutral. This respects religious diversity by allowing everyone to practice their faith freely while maintaining national unity.
- **Single Citizenship:**
 - The concept of "**We the People**" provides a single citizenship that unifies disparate populations under one democratic framework, overriding regional or caste identities.

12. Discuss the constitutional outlook on respecting social roles and ensuring dignity of labour in India.

The Constitution aims to end exploitation and ensure that all work is respected.

- **Prohibition of Exploitation:**
 - **Article 23** prohibits "**begar**" (forced labour) and traffic in human beings. This aims to abolish practices where individuals were forced to work without pay or dignity.
- **Right to Livelihood:**
 - The Supreme Court, in the **Olga Tellis vs. Bombay Municipal Corporation** case, ruled that the **Right to Life (Article 21)** includes the **Right to Livelihood**. Depriving a person of their means of work is a violation of their right to life.
- **Economic Justice:**
 - The Constitution mandates **Economic Justice**, which implies that wealth should be distributed based on work done. It advocates for **equal pay for equal work**, ensuring that labour is fairly compensated and not discriminated against.

13. Examine the constitutional provisions made for the protection of marginalized communities and explain how they support inclusive national development.

- **Abolition of Untouchability (Article 17):**
 - This is a transformative provision that abolishes "untouchability" in all forms, aiming to end the historical humiliation faced by Scheduled Castes.
- **Protection from Atrocities:**
 - The Constitution empowers the state to enact laws like the **Prevention of Atrocities Act**, which provides legal protection and support mechanisms (like the 14566 helpline) for victims of caste-based crimes.
- **Affirmative Action (Reservations):**
 - **Article 16** allows the State to make reservations in public employment for backward classes. This ensures that marginalized communities have representation in the administration and national development.
 - **Article 15(2)** ensures no discrimination in access to public spaces like shops and roads.

14. Discuss the significance of the constitutional safeguards against exploitation, especially in relation to labour protection.

The Right against Exploitation is significant because it protects citizens not just from the State, but from private exploitation.

- **Prohibition of Human Trafficking and Forced Labour (Article 23):**
 - This bans **debt bondage** and slave-like exploitation, which often arises from severe power imbalances between lenders and borrowers.
 - It empowers the State to intervene in civil society to stop cruelty.
- **Prohibition of Child Labour (Article 24):**
 - This article prohibits the employment of children in factories or hazardous conditions, ensuring their safety and right to development.
- **Significance:** These safeguards are essential for human dignity. As noted by the Supreme Court, dignity is infringed by forced labour, and these laws aim to prevent such abuses.

15. With suitable examples, discuss the role and contributions of marginalized communities and labour groups in the development of Indian society.

- **Democratization through Voting:**
 - The introduction of **Universal Adult Franchise** empowered millions of marginalized people who previously relied on the "caprices of others" for representation. Their participation has deepened Indian democracy.
- **Social Revolution:**
 - Leaders like Dr. B.R. Ambedkar and organizations like the **Bahishkrit Hitakarini Sabha** worked to spread education and culture among the downtrodden, contributing to the "social revolution" that the Constitution envisions.
- **Asserting Rights (Legal Contributions):**
 - Marginalized groups have actively used the Constitution to define rights. For example, pavement dwellers in the **Olga Tellis** case fought for their right to livelihood, expanding the interpretation of the Right to Life for all citizens.

16. What do you understand by research ethics? Explain how it helps in preventing plagiarism, fabrication, and falsification in research.

- **Research Ethics:**
 - Research ethics are moral principles that guide researchers to conduct their work truthfully and responsibly. It involves **Beneficence**, which means maximizing benefits for society while minimizing harm.
- **Preventing Malpractice:**

- **Plagiarism:** Ethics dictates that researchers must cite sources properly. It defines plagiarism as using others' work without acknowledgment and mandates giving credit where it is due.
- **Falsification:** Ethical codes strictly forbid **falsification**, which is the manipulation of data or results. This ensures that scientific findings are accurate and trustworthy.
- **Selective Reporting:** Ethics prevents **selective reporting** (hiding negative findings), ensuring that the full truth is published.

17. Discuss why professional integrity is important in ensuring transparency and accountability in workplaces.

- **Professional Integrity:**
 - Integrity is a core value of professional ethics. It means adhering to moral principles and being honest in professional actions.
- **Transparency and Accountability:**
 - **Combating Corruption:** Ethical professional behaviour strengthens democratic governance and reduces corruption. When professionals act with integrity, they prevent the misuse of power.
 - **Conflict of Interest:** Integrity ensures that a professional's personal interests do not interfere with their duty. It ensures rules are followed rather than personal gain.
 - **Legal Compliance:** Integrity ensures professionals respect laws, such as **Intellectual Property Rights** (e.g., avoiding unlicensed software), which fosters a transparent and legal work environment.

18. Analyze the ethical duties and responsibilities that researchers and professionals owe towards society.

Professionals have duties that extend beyond their employer to society at large.

- **Risk Assessment and Safety:**
 - Engineers and professionals have a primary duty to identify and reduce potential hazards. **Risk assessment** is done to ensure the safety of the public, not just to increase profits.
- **Refusing Unethical Requests:**
 - If an engineer is asked to use low-quality materials to save money at the cost of safety, their ethical duty is to **refuse and highlight the safety risks**. They must not simply follow instructions if it endangers lives.

- **Whistleblowing:**

- Professionals have a duty to report illegal or unethical practices (**whistleblowing**) to protect the public interest, rather than ignoring wrongdoing or promoting secrecy.

19. Discuss common ethical challenges faced in research and professional fields, explaining them with suitable examples.

- **Safety vs. Cost:**

- A major challenge is the pressure to cut costs. For example, an engineer might be pressured to use **low-quality materials** to reduce project costs. The ethical challenge is to prioritize safety over financial saving.

- **Intellectual Property Violations:**

- Professionals often face the temptation to use **unlicensed software** to save money. This is unethical as it violates Intellectual Property Rights (IPR) and efficiency standards.

- **Research Misconduct:**

- In research, challenges include **falsification** (manipulating data to get a desired result) and **plagiarism** (stealing others' work). Another issue is **selective reporting**, where negative findings are hidden to make the research look better.

20. Explain how ethical codes and institutional mechanisms help in preventing unethical practices in research and professional environments.

- **Whistleblowing Mechanisms:**

- Institutions establish mechanisms for **whistleblowing**, which allow employees to report illegal or unethical practices without fear. This helps detect and stop wrongdoing early.

- **Licensing and IPR:**

- Legal mechanisms like **Licensing of IPR** grant clear permissions to use intellectual property under specific conditions. This prevents theft and clarifies ownership, reducing legal and ethical disputes.

- **Internal Motivation:**

- Ethical codes work best when they foster **internal motivation**. Compliance is strongest when professionals are driven by their own moral values rather than just fear of punishment or political influence.

